

Foster Caregiver Licensing Standards

Recommended standards of national organizations

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ABA AMERICAN BAR ASSOCIATION
Center on Children and the Law

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child welfare playbook

When a child cannot safely remain at home, they should be placed immediately — with their siblings, in their community — with a caregiver who is supported to fully meet their needs.

Whenever safe and appropriate, that caregiver should be kin.

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About this document

This document contains recommended foster caregiver licensing standards that title IV-E agencies can use in their jurisdiction. These standards build on updated federal guidance on foster home licensing (IM-26-02) and are designed to meet the federal requirement that licensing standards be "reasonably in accord" with recommended standards of national organizations (42 U.S.C. 671(a)(10)(A)). This document also includes background check guidance and suggested measures.

To help agencies put the standards into practice, we also created form templates: a home study assessment, conversation guides, a home safety checklist, a caregiver agreements form, and background check forms. They're published separately as editable documents, along with an editable version of the standards and a crosswalk spreadsheet for comparing your current standards.

These standards and materials build on practices that are already working in agencies across the country. We developed them through research with the people who use them, including agency staff, licensing workers, subject matter experts, foster caregivers, and former foster youth. We conducted research with 191 participants across 34 state, county, and Tribal jurisdictions, building on the more than 435 participants who guided development of the kin standards.

To learn more about our process, refer to *How we developed these standards*.

This work is a collaboration between the ABA Center on Children and the Law, Bloom Works, Child Welfare Playbook, Generations United, and Think of Us.

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BLOOM WORKS

Who this is for

This document is for title IV-E agencies that license foster caregivers, and for the leadership, policy managers, and licensing staff who decide which licensing requirements to adopt and how to implement them.

These standards were developed by many of the same organizations that worked on the kin-specific licensing standards. They're designed to be used alongside the Kin-Specific Foster Home Approval standards, but they also work on their own in jurisdictions that haven't adopted a separate kin-specific track.

While the recommended standards apply to foster caregivers caring for American Indian and Alaska Native children in state custody, they are not a substitute for standards developed by Tribes. The authors recognize the sovereign right of Tribal governments to develop their own licensing standards.



Why we created these standards

Child welfare systems across the country have too few foster homes that are licensed and available. The most recent estimate is that there are 57 licensed foster homes for every 100 children in foster care. In some jurisdictions, overly burdensome licensing processes and outdated foster home licensing standards prevent title IV-E agencies from having enough licensed and available homes for children.

When there aren't enough licensed homes, children don't wait somewhere safe. They're placed in hotels, offices, and congregate care, or far from their families, schools, and siblings. Licensing standards with requirements that don't help caregivers safely meet children's needs make that shortage worse. Unnecessary requirements are a safety risk in their own right.

GOALS

We created these standards with five goals:

Create better placements for children. Agencies that license more safe caregivers can help reduce adverse placement outcomes — children placed far from home, in congregate care, isolated from family, or separated from their siblings.

Make caregivers available in the communities that children come from. When children stay close to home, they're more likely to stay connected to their school, friendships, family, and communities. The new standards remove licensing barriers that fall hardest on rural, Tribal, and lower-income communities so that more caregivers can get licensed in the communities children come from.

Reduce unnecessary burden so that more applicants complete the process. Licensing processes shape who applies and who completes the process. Agencies told us that the administrative burden the process places on families was one of the biggest reasons applicants dropped out.

Improve the quality of caregiver assessments. Caregivers are willing to go through a thorough process as long as they feel like it's trying to assess their fitness and will give them an understanding of what they're taking on. What we heard from agencies and caregivers alike is that a better assessment doesn't mean a longer one. The standards and the assessment form we built are focused on whether a caregiver can meet a child's physical, emotional, medical, and educational needs.

Create consistency to make the process fair. Many agencies said they want more consistency to prevent bias from shaping decisions. These materials explain the reasoning behind the standards so that staff can apply them consistently.



Guiding principles

These are the guiding principles we had in mind when we made the standards and forms. We want our reasoning to be transparent so that agencies can evaluate these standards for themselves.

Only include requirements that promote child safety and well-being.

We looked at each requirement and asked:

- Does it reduce a safety risk or help caregivers meet children's needs?
- Is there evidence that it works, or a strong rationale behind it?
- Is there a way to get the same result with less burden?

If a requirement didn't pass these tests, we removed it. We also kept every requirement that federal law mandates, such as the federal background check requirements. A requirement that doesn't promote a child's safety or well-being can cause harm by discouraging qualified applicants, delaying placements, or leading to adverse placements for children.

To see what we left out and why, refer to *Our reasoning on specific standards*.

Look for ways to get to a yes.

The role of licensing is to find people who can safely care for children, not to find reasons to reject them. Agencies we spoke with described this as trying to "get to a yes" when the evidence supports it. The materials are designed to help licensing workers stay curious about prospective caregivers and understand their strengths and potential, not just reasons for exclusion. Sometimes getting to a yes means licensing someone for a narrower range of children, rather than not at all.

Focus on caregiving capacity and potential.

The assessment form looks at more than the physical conditions of a home or a caregiver's qualifications on paper. It's designed to assess the potential caregiver as a whole, including their:

- Strengths and stability
- Willingness to respond to a child's needs and bring the child fully into their life
- Willingness to work with the agency and the child's family
- Willingness to grow and be challenged

Be transparent with applicants.

The licensing process asks applicants for sensitive information, and they deserve to know why it's being collected and how it will be used. These forms explain why each piece of information is important, and they do it in plain language to make it easy for applicants to understand.

Support staff judgment.

No matter how hard we try to be consistent, licensing a foster caregiver is ultimately a judgment call. We don't want to remove judgment from the assessment process; we want to strengthen it with structure and evidence. These materials explain the rationale and evidence behind the standards, and the assessment form guides workers through what to consider for each topic. They also capture promising practices and the kind of knowledge experienced licensing workers build up over their careers but rarely write down. Where possible, they give workers room to explain risks and good practices to applicants rather than relying on stricter requirements.

A note on terminology

We use the term “foster caregiver” throughout these standards to refer to caregivers licensed to provide foster care in their home. We say “caregiver” instead of “parent” because the child already has parents, and foster caregivers work alongside them rather than replacing them.

We use “kin caregiver” to refer to caregivers who are kin to the child in their care. Kin includes people related to the child by blood, marriage, Tribal custom, or adoption, and others who have an emotionally significant relationship with the child or their family. For the full definition, refer to the *Definitions* section of the standards.

Our research found that these terms are the ones most preferred by the people they refer to. We also refer to this process as “foster caregiver licensing” rather than licensing a “home” or “family.” This is consistent with the way these standards shift the emphasis from licensing structures to licensing people.

For clarity, we use “child” to mean anyone under 18, consistent with how the term is typically defined in state statutes.



Recommended Foster Caregiver Licensing Standards

These are recommended foster caregiver licensing standards that child welfare agencies can use in their jurisdictions. These standards include every requirement that an applicant must meet to become a licensed foster caregiver.

Each standard is flexible enough to fit an applicant's circumstances while keeping children safe. Use them alongside the Kin-Specific Foster Home Approval standards.

These standards do not override state, Tribal, or local laws, including building and fire codes. Where another law sets a stricter requirement, that requirement still applies.

To learn why we wrote some standards the way we did, and why we left some requirements out, refer to *Our reasoning on specific standards*.

These standards are also available as an editable Word document you can copy into your agency's policies or regulations.

Definitions

These definitions explain how we use key terms in these standards and materials. They don't replace definitions already in state, Tribal, or local law.

- **Any other adult in the home:** Any relative or non-relative age 18 or older who aaregularly lives, shares common areas, and sleeps in a home. An individual who is living, sharing common areas, and sleeping in a home temporarily for more than two consecutive weeks is also considered an adult in the home.
- **Applicant:** A person who has applied to the licensing agency to become a licensed foster caregiver.
- **Foster caregiver:** A person who provides foster care in their home with a license from the licensing agency.
- **Kin:** Individuals related to a child by blood, marriage, Tribal custom, or adoption, and other individuals who have an emotionally significant relationship with the child or the child's parents or other family members. This matches the definition in the Kin-Specific Foster Home Approval standards. A kin caregiver is someone who is kin to the child in their care.
- **License:** The approval, verification, or certification of an applicant and their home to provide foster care.
- **Licensing agency** (also known as "agency"): The private or public organization that has authority to issue a foster care license.
- **Special healthcare needs:** A chronic physical, developmental, behavioral, or emotional condition, or an increased risk of one, that requires health and related services of a type or amount beyond what children generally need. Examples include conditions such as asthma, autism, cerebral palsy, congenital heart disease, diabetes, epilepsy, food allergy, human immunodeficiency virus (HIV), juvenile idiopathic arthritis, genetic disorders, neuromuscular disease, sickle cell disease, spina bifida, spinal cord injury, trauma-related injury, and speech, language, learning, and behavior disorders. (HRSA, AAP)

Threshold requirements

Age

- Applicants must be age 18 or older.

Adequate income or resources

- Applicants must be able to pay for shelter, food, utilities, clothing, and other household expenses before children in foster care are placed with them. Public assistance, such as SNAP, is an acceptable form of income and does not disqualify applicants.

Communication

Applicants must be able to communicate with the child, the child's parents, the licensing agency, healthcare providers, and other service providers. Applicants can communicate through an interpreter or translator.

Applicants do not have to be proficient in English, as long as they can still meet this requirement. For example, if the applicant lives in a community that primarily uses another language and they are proficient in that language, they would meet this requirement.

Training

- Everyone in the household who plans to be a licensed caregiver must complete pre-licensing and ongoing training.
- Applicants must complete pre-licensing training (either online or in person) on the following topics:
- Rights, roles, responsibilities, and expectations of foster caregivers, including supporting reunification
- Reasonable and prudent parenting
- Agency structure, purpose, policies, and services
- Laws and regulations relevant to foster caregivers
- Understanding the court system
- The importance of maintaining meaningful connections between the child and their parents, siblings, and kin, including regular visitation, and the caregiver's role in supporting these relationships

- The impact of childhood trauma, how caregivers can recognize and respond to it appropriately, and trauma-informed caregiving strategies
- Managing child behaviors and positive discipline
- First aid and CPR for the ages of children in placement
- Permanency planning
- Reporting and recognizing child abuse, neglect, and exploitation
- Safe sleep (for caregivers licensed to care for infants)

Foster caregivers must also complete ongoing training to support their caregiving and keep up with agency requirements.

Applicants may need to complete more training based on a specific child's needs, where they live, or their household's needs. For example, this could include:

- Meeting a specific child's physical, medical, mental health, or educational needs
- Naloxone (Narcan) training (in places where opioid use is common)
- Responding to specific kinds of trauma or behavior

Background checks

Criminal history checks

The agency must conduct criminal history and other background checks required by applicable federal, state, Tribal, or local law for all applicants and any other adults in the home, including:

- Fingerprint checks of national and state criminal records
- Name-based checks of state or local criminal records
- Sex offender registry checks

Automatically disqualifying criminal history

An applicant must not be licensed if their records or those of any other adult in the home show any of the following:

- Felony conviction for child abuse or neglect
- Felony conviction for spousal abuse

- Felony conviction for a crime against children (including child pornography)
- Felony conviction involving violence, including rape, sexual assault, or homicide, but not including other physical assault or battery

An applicant must not be licensed if their records or those of any other adult in the home show any of the following crimes were committed in the last 5 years:

- Felony conviction for physical assault
- Felony conviction for battery
- Felony conviction for a drug-related offense

Evaluation of criminal history

If an applicant was convicted of a crime other than an automatically disqualifying crime, the applicant is not automatically disqualified. The agency must consider the following:

- The role the person plans to have with children in their care
- The type of crime
- How much time has passed since the crime
- The person's age when they were convicted
- How serious the crime was
- The total number of crimes, and the person's age when they committed them
- Evidence of rehabilitation since conviction (such as completion of treatment, court-ordered classes, community service, or character references)

Abuse and neglect registry checks

The agency must conduct the following abuse and neglect registry checks for all applicants and any other adults in the home:

- Check all registries for child abuse and neglect for the state, Tribe, or locality where the applicant resides
- Request that any other state in which applicants and any other adults in the home have resided in the past 5 years also check all child abuse and neglect registries maintained by that state

The agency must respond to abuse and neglect registry check requests from other jurisdictions in accordance with applicable federal, state, Tribal, and local laws, including any laws governing confidentiality, disclosure, and registry access.

Evaluation of abuse or neglect

If there is a substantiated report of child abuse or neglect involving the applicants or any other adults in the home, the application is assessed on a case-by-case basis. This includes a discussion with the applicants and household members to determine whether the history affects the safety of any child in the home.

If the history does not affect the safety of children in the home, the finding must not prevent licensing.

Juvenile offenses

Applicants have an ongoing duty to report any juvenile offenses committed by any other household member. The existence of a household member with a juvenile offense does not automatically disqualify the applicants.

The agency must consider whether to license the applicant based on the criteria used to assess crimes set forth in the sections on evaluation of criminal history and evaluation of abuse or neglect.

Home study

Home visit

Applicants must complete an agency home study, including at least one scheduled on-site visit to assess the safety of the home using these licensing standards.

Tribal agencies may also be involved in conducting home studies for American Indian and Alaska Native children. Federal law requires any receiving state to treat a Tribal home study report as meeting the state's home study requirements.

Interviews and observations

The agency must conduct at least one scheduled in-home, individual interview of each household member to evaluate family dynamics and assess the family's capacity to meet the needs of a child in foster care. The agency may decide to observe household members instead of interviewing them, based on the household members' age and development.

References

The agency must obtain at least three references. If possible, these should include one from a relative and one from a non-relative. If the applicant has adult children, the agency should get references from as many of them as possible. \

Licensing workers must consider any reports from the applicant's references about the applicant's ability to care for children safely.

Caregiver's health

Physical health

The applicant must tell the licensing agency about physical health needs that might limit their ability to care for a child.

The applicant must also tell the licensing agency about any support they currently have or will need to carry out any of the activities of daily living (for example, preparing meals, bathing, housekeeping) for themselves and children.

Physical exams, drug testing, and consultations with healthcare providers are not required unless the licensing worker requests them based on their assessment of the applicant.

NOTE FOR AGENCIES

We recognize that states take different approaches to vaccine requirements for foster caregivers.

We have included two versions of the vaccination standard for states to consider. Version 1 is the minimum recommended by public health experts and includes only the most essential vaccinations needed to keep high-risk children safe. Version 2 aligns with the vaccine schedules recommended by national public health organizations.

Our form templates reflect Version 1 because it is less restrictive and reduces barriers to licensure.

Vaccinations for household members

Version 1: Vaccines are only required for applicants who plan to care for high-risk children

Applicants and their household members who plan to care for infants ages 0 to 12 months or children of any age who have special healthcare needs must have up-to-date vaccinations for:

- Whooping cough
- Measles

Flu vaccinations are strongly recommended, but not required, for all members of households caring for infants ages 0 to 12 months or children of any age who have special healthcare needs.

Version 2: Vaccines are required for all applicants

Applicants and their household members must be up to date on their vaccines, as recommended by the American Academy of Pediatrics (AAP) and the American Academy of Family Physicians (AAFP). If an immunization is contrary to the individual's health as documented by a healthcare provider, the licensing agency may grant an exemption to these vaccination requirements.

Flu vaccinations are strongly recommended but not required.

Mental health

The applicant must tell the licensing agency about their mental health conditions, challenges, history, and past and current treatment.

The applicant must also tell the licensing agency about mental health needs that might limit their ability to care for a child.

Consultations with mental or behavioral healthcare providers are not required unless the licensing worker requests them based on their assessment of the applicant.

Substance use

The applicant must tell the licensing agency about their current alcohol and drug use, and any history of issues with alcohol or drug use.

Physical exams, drug testing, and consultations with physical, mental, and behavioral healthcare providers are not required unless the licensing worker requests them based on their assessment of the applicant.

Caregiver's parenting approach

Prudent parenting

Applicants must agree to follow the title IV-E agency's reasonable and prudent parent standard per federal law.

Prudent parenting means that caregivers must:

- Make careful and sensible everyday parenting decisions, including about activities the child participates in
- Prioritize the child's health, safety, and best interests
- Support the child's emotional and developmental growth

Needs of children

Sleeping arrangements

Applicants must provide each child in care with a safe, age-appropriate place to sleep that is comparable in quality to those of other children in the household.

Beds

Babies under 12 months must sleep in a bassinet, crib, pack and play, Native American cradleboard, or baby box. There must not be any pillows or blankets in their sleeping space.

Children between 12 months and 3 years (toddlers) may sleep in a crib, pack and play, or bed with side rails.

Children age 3 or older may sleep in a bed, bunk bed, sleeper sofa, mattress on the floor, or futon, as appropriate for their age and development.

Room sharing with caregivers

- Caregivers may share a room with children under age 3 without approval from agency staff.
- Caregivers may request to share a room with children age 3 or older. Agency staff may approve these requests at their discretion.
- Caregivers should use prudent parenting for occasional room sharing, such as short-term sharing with a child who is sick or having nightmares.

Room sharing with other children

Children under the age of 5 years may share rooms with each other without approval from agency staff.

In all other cases, caregivers may request that children in care be allowed to share rooms with each other or with other children in the home. Agency staff may approve these requests at their discretion.

Bed sharing

- Children who do not want to share beds must not be required to.
- Babies under 12 months must not share beds with anyone.
- Children who are related, such as siblings, may request to share beds if they want to. Agency staff may approve these requests at their discretion. In these cases, each child must also have their own safe place to sleep as an alternative.

Exits from sleeping spaces

Any room where a child in foster care sleeps must have a second exit (a door or window), in addition to the main door into the room. This exit must be:

- Unblocked
- Large enough for an adult to get through
- Connected to an unobstructed path to the outdoors. Paths to the outdoors can include:
  - Windows
  - Doors
  - Passable hallways, or rooms that connect to passable hallways
  - Fire escapes
  - Fire ladders, for children who are able to use them

In apartment buildings, rooms without a secondary exit must have a sprinkler system.

Transportation

Applicants must make sure that the child has reliable transportation to school, medical appointments, activities, social plans, jobs, internships, meetings with child welfare workers, and other appointments.

Reliable transportation can include a personal vehicle, public transportation, access to someone else's vehicle, or a plan for others to help with transportation.

Home conditions

Water

The home must have an adequate supply of safe water for drinking and bathing.

Sources of safe water can include:

- Indoor plumbing
- Bottled water
- Well water that has been tested for safety according to state, Tribal, and local guidelines
- Water that is delivered and stored in a tank

Heating and cooling

The home must have heating and cooling that is safe, working properly, and appropriate for the geographic region. This may include:

- Ceiling or floor fans, portable or window air conditioning units, swamp coolers
- Opening doors or windows for airflow
- Kerosene or propane heaters, space heaters
- Wood-burning stoves

Lighting

The home must have adequate lighting. Electricity is not required for licensing, but it may be necessary to care for specific children, such as those who require it for medical reasons.

Kitchen facilities

Applicants must have safe and clean spaces to store, clean, and prepare food.

Appliances used to store and prepare food must work properly.

Bathroom facilities

The property must have at least one toilet and one tub or shower that are safe and work properly.

Off-grid bathroom facilities, such as composting toilets, may meet this requirement.

Phone access

Household members, including children in care, must have easy, frequent access to a working phone. Cell phones, landlines, and Wi-Fi calling all satisfy this requirement.

Outdoor areas

Outdoor areas that children will have access to must be safe, based on children's age and development. Potential hazards include:

- Street traffic
- Railroad tracks
- Farm animals or equipment
- Trampolines
- Wells

Swimming pools and other bodies of water

Applicants must work with agency staff to make and follow safety plans for swimming pools and other bodies of water, such as ponds, lakes, and rivers. These plans must specify how the applicant will supervise children around water and what physical safety measures will limit their access to it.

Ways to limit access to water include:

- Fencing
- Locked gates
- Safety covers
- Door alarms

Applicants may need to take extra safety measures to care for certain children. For example, applicants who wish to care for young children may need to install fences around their swimming pools. Agency staff must work with applicants to make these determinations.

Swimming pools, hot tubs, and spas must be in good working order and meet all state, Tribal, and local safety requirements. Swimming pools must be equipped with a throwable life-saving device, such as a ring buoy.

Pets

Pets in the home must not pose a health or safety threat. Any animal that poses a threat to the safety or health of children in foster care must be inaccessible to children. Rabies vaccination is strongly recommended but not required.

Hazards

Medication storage

Prescription and over-the-counter medications (including vitamins, herbal remedies, and pet medications) must be stored out of reach of children in the home, as appropriate for their age and development. Some medications may need to be stored in a lockbox, depending on children's needs.

- Medication can be stored within a child's reach if:
- The child can responsibly take their own prescription medication
- The child has emergency medication, like an epinephrine injector (EpiPen) or inhaler

- The child is mature enough to responsibly take over-the-counter medications, such as ibuprofen, and has made a plan with the caregiver about when and how often it is appropriate to do so

Tools and hazardous materials storage

Tools and hazardous materials must be stored out of reach of children based on each child's age, history, and ability. This may include:

- Power or yard tools
- Saws, axes, and knives
- Cleaning supplies
- Pesticides
- Gasoline
- Alcohol, marijuana, tobacco, and other drugs

Children may access cleaning supplies or yard tools to complete developmentally appropriate chores and build life skills for independence.

Firearms and weapons storage

All firearms, weapons, and ammunition in the home must be stored locked, unloaded, and inaccessible to children.

Examples of weapons include:

- Guns
- BB guns
- Pellet guns
- Air rifles
- Stun guns
- Bows and arrows
- Anything else made to hurt people or damage property

If a federal, state, Tribal, or local law enforcement officer lives in the household and maintains and stores their service-issued firearms in accordance with federal, state, Tribal, and local law enforcement safety procedures, then those firearms do not need to be stored unloaded. All other aspects of this requirement still apply.

When firearms or ammunition are taken outside the home, they must remain inaccessible to children, unless a child has been granted permission for hunting or shooting activities.

Caregivers must take all reasonable safety precautions to ensure firearms are not accessible or used in a manner that could harm children.

Fire hazards

The applicant's home must be free of obvious fire hazards, such as:

Exposed wires or electrical outlets

Flammable materials within 3 feet of a fire source (like a space heater or wood stove)

Multiple extension cords or surge protectors connected together

Other hazards

The home and property must be free from any other health or safety hazards that children can access, such as rodent or insect infestation, peeling lead paint or lead paint dust, overflowing garbage, loose pet waste or an overwhelming smell of pet waste, significant mold, or excessive debris.

Emergency preparedness

Smoke and carbon monoxide detectors

The applicant's home must have at least one smoke detector on each floor. Smoke detectors must be placed in locations that provide effective protection for sleeping areas.

If the home has a gas appliance (boiler, furnace, stove, dryer, water heater), propane space heater, fireplace, wood stove, coal-fueled appliance, or attached garage, it must have at least one carbon monoxide detector near sleeping areas.

One carbon monoxide detector per floor is recommended but not required.

All smoke and carbon monoxide detectors must be in good working order.

Fire extinguisher

The home must have at least one working fire extinguisher that is in or near the kitchen.

Emergency contacts

Applicants must give the agency contact information for one or more emergency contacts. These should be trusted adults (such as close friends or family members) who the agency can contact if it can't reach the caregiver in an emergency.

First aid supplies

The applicant's home must have first aid supplies, such as the supplies recommended by the American Red Cross. First aid supplies must be accessible to children, as appropriate for their age and level of development.

Home capacity

The total number of children in foster care in a foster home must not exceed six, consistent with federal law. The number of foster children cared for in a home may exceed six at the discretion of the licensing agency for any of the following reasons:

- To allow a parenting youth in foster care to remain with the child of the parenting youth
- To allow siblings to remain together
- To allow a child with an established meaningful relationship with the family to remain with the family
- To allow a family with special training or skills to provide care to a child who has a severe disability

The number of children in foster care in a given home may be limited to fewer than six based on the needs of the specific children (for example, children with special healthcare needs).



Our reasoning on specific standards

This section explains standards where we removed a common requirement, made a significant change from previous model standards, or expect agencies to have questions.

Physical health and mental health

These standards do not require examinations (including physicals) or sign-off from medical or mental health providers.

One reason is that appointments with healthcare providers are often hard to get, especially for people without insurance. Requiring a physical exam or other appointment can seriously delay licensing for qualified caregivers.

Another reason is that research participants told us that provider involvement in the licensing process often feels like a formality more than a source of valuable information. We heard that it's easy to get sign-off from a provider without actually going through a careful evaluation.

Instead, we recommend that agencies use references and direct conversation with the applicant to evaluate the applicant's physical and mental fitness to be a caregiver. The standard also notes that licensing workers can choose to seek more information from medical or mental health providers if they have a specific concern about the applicant's ability to care for children.

Vaccinations for household members

We recognize that states take different approaches to vaccine requirements for foster caregivers. We have included two versions of the vaccination standard for states to consider. Version 1 is the minimum recommended by public health experts and includes only the most essential vaccinations needed to keep children with special healthcare needs and infants safe. Version 2 aligns with the vaccine schedules recommended by national public health organizations.

Our form templates reflect Version 1 because it reduces barriers to licensure and aligns with our research findings.

Version 1 reflects what we heard from caregivers and agency staff: that broad vaccination requirements would deter many applicants and narrow the pool of qualified caregivers. We also know that lack of vaccine access can be a barrier to meeting requirements, especially in rural areas.

Because foster children are already required to stay up to date on their vaccinations, most are protected even if the people they live with aren't vaccinated. But children who have special healthcare needs, or who can't be vaccinated against certain diseases, can still get seriously ill from household members.

For those children, the risks of living in an unvaccinated household are substantial. That's why Version 1 requires vaccination for households caring for them.

We worked with public health experts to determine that vaccination against measles and whooping cough were the two most essential safeguards for households caring for infants or for children with special healthcare needs.

In both versions of the standard, we strongly recommend vaccination against the flu, but we do not require it. That's because the efficacy of the flu vaccine varies and because it is only available seasonally.

Finally, we include guidance in the conversation guide for licensing workers to educate applicants about the importance of vaccination and strongly recommend that everyone in the household stay up to date with their vaccines.

Substance use

The substance use standard does not require a drug test before licensing. Drug tests can be expensive and difficult to access, which creates barriers for applicants and slows down the licensing process. What's more, they provide only a single snapshot of the applicant's substance use and cannot meaningfully prevent substance use issues during caregiving.

Instead of drug testing, we recommend:

- In-depth conversation with the applicant about their substance use and how it might affect them as a caregiver
- Using references to further assess the applicant's substance use

Frequent check-ins and conversations with children after placement, so that agency staff can be alert to any signs of substance use issues

Sleeping arrangements

The sleeping arrangements standard is intended to be strict enough to ensure safety while also offering flexibility for agency staff, caregivers, children, and their parents to collaborate in finding sleeping arrangements that work well for them.

We consistently heard from caregivers and former foster youth that flexible rules were essential, and that rigid ones often led to unintended consequences and retraumatization.

For that reason, the standard does not include strict rules about separate sleeping spaces for children of specific ages or genders. It also leaves out specific rules about how big bedrooms have to be and how many children can sleep in each one.

Instead, it gives agency staff the discretion to determine whether a given sleeping arrangement is safe and appropriate, and our guidance gives them detailed criteria to consider when making those decisions. This standard acknowledges the reality that each situation is different and emphasizes the need for a careful, thorough approval process at placement.

Exits from sleeping spaces

The standard for exits from sleeping spaces focuses on making sure that children can safely exit their sleeping spaces in the event of a fire or other emergency. The rule for the size of the additional exit is intentionally approximate, so that applicants don't have to make expensive renovations for only a small gain in child safety.

Our guidance for agency staff emphasizes that agencies do not need to require fire inspections in addition to enforcing these standards.

Water

Running water is not required as long as the home has access to safe water for drinking and bathing. This is because running water is not standard in all communities and requiring it could prevent safe, supportive homes from getting licensed.

Lighting

Electricity is not required as long as the home has access to adequate light and can otherwise meet the needs of children placed there. This is because electricity is not standard in all communities and requiring it could prevent safe, supportive homes from getting licensed.

Swimming pools and other bodies of water

Instead of requiring extensive specific safety measures, the standard for swimming pools and other bodies of water focuses on plans to supervise children and limit their access to water. It also defers to state, Tribal, and local safety requirements for pools, hot tubs, and spas rather than duplicating them.

The intent of this standard is to provide flexibility for the licensing worker and the applicant to implement reasonable, cost-effective safety measures that are tailored to the specific home. It is also intended to emphasize the essential importance of supervising children around water, which our public health experts named as a top priority for preventing drowning.

Pets

Pet vaccination is recommended but not required. We heard from caregivers and agency staff that requiring pet vaccination would deter many applicants and narrow the pool of qualified caregivers. It can also be impractical in situations where pets cannot be vaccinated (due to age or health problems).

We recommend that licensing workers encourage applicants to keep their pets' vaccinations up to date.

Medication storage

The standard for medication storage focuses on storage that is appropriate for the age and development of children placed in the home. It allows for some medication to be kept within reach of children under specific circumstances.

It does not mandate lockboxes for all medications. Lockboxes may be necessary for some placements, but we heard from research participants that requiring lockboxes broadly can deprive children of the chance to build age-appropriate life skills and leave them unable to access emergency medication.

Firearms and weapons storage

The standard for firearms and weapons storage includes exceptions for law enforcement officers who maintain and store their service-issued firearms in accordance with federal, state, Tribal, and local law enforcement safety procedures.

However, it does not include exceptions for state open or concealed carry laws. This standard is intended to apply regardless of state law and may be stricter than a given state's law.



Implementing these standards

All title IV-E agencies must maintain licensing standards that are reasonably in accord with recommended standards of national organizations. These standards are designed to meet that requirement, alongside the Kin-Specific Foster Home Approval standards.

Tribes that aren't title IV-E agencies don't have this requirement, but may find these materials a useful starting point.

This section covers a tool for comparing your current standards, what to consider before adding requirements of your own, what licensing agencies can do to support caregivers, measures for tracking results, and where to get help making these changes.

Crosswalk

The crosswalk is a spreadsheet that helps you compare your current standards with these recommended standards. It has two tabs:

- **Compare your standards.** Lists each recommended standard, with space to record your state or Tribe's current standard and notes. Use it to find where your standards differ. Where they do, note the action needed, or note that your agency has chosen a different path. You don't need to finish it in one sitting. Start with the areas where you expect the most divergence.
- **All standards comparison.** Shows each recommended standard next to the Kin-Specific Foster Home Approval standards (2023) and the NARA Model Family Foster Home Licensing Standards (2014).

Some of the recommended standards are the same for kin and foster caregivers. Others differ because kin and foster licensing serve different relationships. For the full kin standards, see the Kin-Specific Foster Home Approval standards.

What to do before adding a requirement

These standards were designed to promote child safety and well-being without adding unnecessary burden, and they are backed by research. We recommend that you adopt them as written. But we understand that your agency may need to make changes.

Keep in mind that adding requirements can cause real harm. Every requirement you add is a step an applicant has to complete and a step your staff has to administer. In our research, agencies told us that administrative burden was one of the biggest reasons applicants dropped out of the licensing process. Any requirement that doesn't promote child safety can keep qualified caregivers from getting licensed and keep children from the homes they need.

1. **Check if there's a reason we excluded the requirement.** We explain why we left some requirements out and why we wrote others the way we did in Our reasoning on specific standards.
2. **Show that the requirement prevents harm.** What specific risk to children's safety or well-being are you trying to address? Look for data connecting that risk to actual harm to children.
3. **Write the proposed requirement in plain language.**
4. **Test the proposed requirement with former foster youth and foster caregivers.** Ensure each proposed requirement enables caregivers to maintain a loving home environment where the child can develop and thrive. Ask former foster youth whether they support this requirement and how it would have impacted them. Check whether caregivers understand it, how it might affect them, and whether there are reasonable alternatives.
5. **Test the proposed requirement with licensing staff who conduct assessments.** Is the language clear? Should the requirement be included? Does it need to be more flexible to allow for different types of situations? Could it limit their discretion or have unintended consequences? How will it affect their workload?
6. **Share the updated requirement** with former foster youth, caregivers, and staff who were consulted during the process, regardless of whether you decide to add the requirement.

Recommended licensing agency responsibilities

These recommendations come from federal guidance (IM-26-02) and reflect what we've heard from agencies about what slows the licensing process down unnecessarily.

Cover reasonable expenses to help caregivers meet the licensing standards. For example, you could provide a smoke detector, fire extinguisher, or car seat, especially for kin placements and high-priority foster caregiver applicants.

Fast-track applicants when you can. Not every application needs the same timeline. Consider fast-tracking:

- Applicants who held a license in good standing in another state
- Applicants reactivating a previous license that was relinquished in good standing, if they attest that they still meet the agency's standards
- Licensed kin caregivers who want to become general licensed foster caregivers
- Applicants who meet an urgent placement need, such as a home that can take a large sibling group, a home where the caregiver speaks a needed language, or a home in a community with too few available placements
- Kin who want to be licensed in jurisdictions that don't yet have kin-specific licensing standards

Set timeline expectations for licensing. Create a process to ensure that you license applicants within:

- 90 days of a completed application
- 60 days for fast-tracked applicants
- 7 days of placement for kin, ideally on the same day

Suggested measures

These measures for licensing, placement, and recruitment can help you evaluate the effectiveness of your licensing process. These measures track not just the speed of your process, but also whether licensed caregivers match the needs of children in your care and whether those caregivers stay.

We recognize that jurisdictions have different licensing processes that involve an array of technical systems with varying levels of automation. These measures are relevant regardless of how automated your systems are.

Suggested measures for the licensing process:

- Time, in days, between each step of the licensing process, including:
- Inquiry submission and first contact from the agency
- Application submission and background check completion
- Application submission and licensing decision (approval or denial)
- Time, in days, to respond to child abuse and neglect registry check requests from other states
- % of applicants who complete the licensing process

If possible, also keep track of the reasons applicants aren't licensed, and aggregate and analyze these reasons every six months.

We also recommend tracking these related measures to monitor the effectiveness of your licensing process.

Placement measures that may indicate effectiveness of your licensing process:

- % of previously licensed homes that remain open year over year
- % reduction in congregate or emergency placements
- % reduction in sibling separations
- % reduction in far-from-home placements
- % placed with licensed kin

Recruitment measures that may indicate effectiveness of your licensing process:

- % of inquiries that convert to application

We recommend tracking these same priorities across licensing, placement, and recruitment because a gap at any stage undermines the others.

Support for making these changes

Attorneys at Generations United and the ABA Center on Children and the Law are available to provide free technical assistance to jurisdictions working to align their rules, policies, and practices with these standards. For assistance, contact:

- Ana Beltran, Generations United — abeltran@gu.org
- Heidi Redlich Epstein, ABA Center on Children and the Law — heidi.epstein@americanbar.org



Background check guidance

This guidance is adapted from the Kin-Specific Foster Home Approval standards. We include it here because background checks are a frequent source of confusion and delay. It covers who needs which checks, how to run each one, and how to evaluate the results.

Explaining background checks to applicants

Background checks can be intimidating, so it's important to explain to applicants what they're consenting to.

Our recommended background check consent form, developed with agency staff and caregivers, explains the process and what to expect.

Who needs a background check

All applicants and any other adults in the home must have the following background checks:

- Name-based state or local criminal history check
- Fingerprint-based background check[1] of federal and state databases
- State, Tribal, or local child abuse and neglect registry check
- Child abuse and neglect registry check in any other state where they lived in the last 5 years
- Sex offender registry check

1 Three different statutes cover fingerprinting for adults in prospective foster family homes. Federal law under 42 U.S.C. 671(a)(20)(A-B) requires title IV-E agencies to conduct a fingerprint-based criminal background check for all caregiver applicants. All other adults living in the home are required to submit fingerprints per the Child Abuse Prevention and Treatment Act (CAPTA) (42 U.S.C. 5106a(b)(2)(B)(xxii)). The Indian Child Protection and Family Violence Prevention Act (25 U.S.C. § 3207) requires Tribes that license foster homes to conduct fingerprint-based background checks of all adults who reside in the home.

Defining "any other adult in the home"

Refer to the *Definitions* section of the standards for what "any other adult in the home" means. Here are some examples:

Any other adult in the home (age 18 or older)	• A tenant who rents a room in the basement and shares the kitchen or other common space with the caregiver • A caregiver's live-in romantic partner • A grandparent or other adult relative who lives in the home • An au pair or nanny living in the home • An adult child who goes away to college but is home for more than two weeks (such as over the summer, or taking remote classes for a semester)
Not "any other adult in the home"	• A tenant with a separate entrance, who would have to leave their home to enter the caregiver's home • Someone living in an Accessory Dwelling Unit (ADU) on the property • Someone living in a mobile home on the property • Someone living in another unit in a duplex, triplex, or apartment building • Workers on a farm who live in an employee housing building • A neighbor or housekeeper with a house key • A babysitter • A young adult in the care and custody of the agency who is placed with the caregiver by the agency • Individuals living in the home who are under 18

Don't delay licensing for absent adults in the home

Sometimes there's an adult who will qualify as an "adult in the home" in the future, but who isn't there at the time of licensing. Examples include:

- An older child currently away at school, but anticipated to return (such as for summer break)
- A long-haul trucker away on the road
- Someone working in an oil field
- Someone deployed in the military

You can arrange fingerprinting when the adult's return is known and imminent, but don't hold up licensing while you wait for it.

Similarly, if someone in the home is about to turn 18, you can license the applicant now, and fingerprint them once they become an adult.

In-state criminal history checks

Agencies must conduct name-based background checks of state or local criminal history for applicants and any other adults in their home.

Fingerprinting

Slow fingerprint results can significantly delay licensing. Agencies should focus on streamlining and improving their policies and practices related to fingerprinting. Federal funding may be available for fingerprinting and background check improvements[1,2].

Fingerprinting timeframes

It is possible to collect, receive, and evaluate fingerprint-based background check results within hours, and at least one agency does. In contrast, some agencies reported waiting up to 180 days on average. Agencies should evaluate their current policies and practices to find ways to get fingerprint results faster.

1 See Question 33 in Section 8.1B of the Child Welfare Policy Manual.

Fingerprinting locations

Promising practices to make fingerprinting more accessible:

- Mobile fingerprinting machines, particularly in rural areas or with homebound adults
- Fingerprinting available in child welfare offices, so applicants can get fingerprinted while attending other meetings
- Community-based fingerprinting services in locations like UPS or FedEx stores

Acceptable forms of identification

This list of IDs accepted for fingerprinting is compiled from the FBI Compact Council's recommended types of identification and lists from agencies we consulted. This list goes beyond what any individual agency currently accepts, so we recommend working with your fingerprinting vendor to update your jurisdiction's list of approved forms of identification.

The recommended background check consent form includes this list.

Primary identification documents

Primary forms of identification must be valid[1] and unexpired and have the applicant's full name, date of birth, and identifiable photo. Applicants must provide one of the following for identification:

Driver's license or state-issued ID

- Driver's license from a state or U.S. territory (including permit, paper/temporary, enhanced, non-REAL, or commercial versions)
- ID card issued by a U.S. federal, state or local government agency, or territory

Tribal ID

- Enhanced Tribal identification card (for federally recognized U.S. Tribes)

Military and uniformed services ID

- Department of Defense Common Access Card
- Uniformed Services Identification Card (Form DD-1172-2)
- U.S. military identification card
- U.S. Coast Guard Merchant Mariner card
- Military dependent's identification card

Passport or visa

- U.S. passport or passport card
- Foreign passport (immigration documentation is not required)

U.S. visa issued by the U.S. Department of Consular Affairs for residence in, or travel to or in, the U.S.

Immigration document

- Permanent Resident Card or Alien Registration Receipt Card (Form I-551)
- Employment Authorization Card/Document (I-766) that contains a photograph

Foreign driver's license

- A foreign driver's license valid for Mexico or Canada

1 Documentation is valid if it is unexpired and original, except when an applicant presents an acceptable receipt.

If an applicant's ID document has a **different name** than the applicant's current name, the applicant must also bring an original or certified copy of one of the following documents:

- Social Security card
- Marriage certificate (government issued)
- Divorce decree (government issued)
- Court order for name change
- Court order for gender change
- Court order for adoption

Secondary documents

If an applicant doesn't have a primary document, they may bring one secondary document and two supporting documents.

Secondary documents (bring one)

- State-issued birth certificate
- Court order for name change, gender change, or adoption
- Marriage certificate (government issued)
- Divorce decree
- Social Security card
- Certificate of Citizenship (N-560 or replacement N-561)
- Certificate of Naturalization (N-550 or replacement N-570)
- INS I-688 Temporary Resident Identification Card
- School ID card with a photo
- Native American Tribal ID card (note: Enhanced Tribal IDs count as primary documents)
- Consular identification card (Matrícula Consular) from Mexico, or similar ID that DHS accepts
- Government-issued employee ID card with a photo
- U.S. Consular Report of Birth Abroad
- Military draft record

Supporting documents (bring two)

- Current utility bill (with the applicant's address)
- Voter registration card
- Vehicle registration card or title
- Current paycheck stub with the applicant's name and address (financial details can be redacted)
- Public assistance card (like SNAP)
- Spouse or parent affidavit
- Current canceled check or bank statement
- Mortgage documents

Alternatives for people without fingerprints

Agencies should have a policy allowing a name-based background check for people without fingerprints (such as those missing fingers, or those who no longer have fingerprints due to age or exposure to chemicals).[1]

Research for the kin standards showed that many agencies today require people without fingerprints to try to "fail" the fingerprinting process twice before allowing a name-based alternative. This is dehumanizing and adds unnecessary delay.

Correcting errors in fingerprint results

The FBI requires that people get a chance to correct inaccurate information on their background check. (This is different from appealing a denial based on accurate criminal history information.)

The recommended denial letter and background check consent form explain how applicants can correct their FBI record. They can contact the agency that provided the information to the FBI, submit a request online, or send a written request to the FBI's Criminal Justice Information Services (CJIS) Division.

In-state child abuse and neglect registry checks

Licensing workers should be able to search the state child abuse and neglect registry directly. Nearly every agency we spoke with already does this.

Many states told us that, as a result of old technology and multiple data migrations, it's common for people who were in foster care and victims of abuse or neglect themselves to now be listed as offenders due to poor-quality data. In agencies where this is true, we suggest clear guidance on how to tell the difference and, ideally, a plan for correction.

All states need to provide a clear process for requesting removal from the child abuse and neglect registry. When a registry listing affects an application, explain this process to the applicant, both in your conversation about the finding and in writing.

1 See Question 30 in Section 8.4F of the Child Welfare Policy Manual.

Out-of-state child abuse and neglect registry checks

Requesting out-of-state child abuse and neglect registry checks

If an applicant or any other adult in the home has lived in another state in the past 5 years, the agency must ask that state to check its child abuse and neglect registry.

The federal requirement for checking child abuse and neglect registries is limited to states that maintain one. For this purpose, a "state" is defined in 45 CFR 1355.20 as the 50 states, the District of Columbia, the Commonwealth of Puerto Rico, the U.S. Virgin Islands, Guam, and American Samoa.

The U.S. Virgin Islands doesn't maintain a registry, so you don't need to send requests there.[1]

You don't need to check registries in other countries.

Fulfilling out-of-state child abuse and neglect registry requests

Giving other agencies a simple, fast way to get child abuse and neglect registry checks from your state is critical to child safety. Out-of-state child abuse and neglect checks are currently the longest step in licensing, especially for applicants who recently moved from another state. Seek technical assistance if your average response time exceeds one week.

We recommend adopting our out-of-state child abuse and neglect findings request template, which includes all required information and nothing more. To respond to requests quickly, we and ACF recommend[2]:

- Not charging a fee
- Not requiring a separate permission form, and instead accepting the requesting agency's statement that it has consent on file
- Accepting and fulfilling requests electronically
- Not requiring a witnessed or notarized signature
- Asking only for the information needed to run the check
- Using a general inbox or address for requests, instead of one person's

1 See Question 18 in Section 8.4F of the Child Welfare Policy Manual.
2 ACF, IM-26-02, Attachment B.

Track and update your agency's compliance with these recommendations at the Child Welfare Playbook Progress Dashboard.

Sex offender registry

Search the national sex offender registry for applicants and any other adults living in the home. Some agencies also search their state's sex offender registry.

If you search the registry by the applicant's address, don't factor in the history of people at nearby addresses.

Checks we don't recommend

We do not recommend any additional checks beyond the ones listed above.

We specifically recommend against the following checks for applicants or any other adults in the home, which some agencies currently require:

- Required drug tests for all applicants
- Motor vehicle history checks
- SNAP database checks
- Child support registry checks
- Military base criminal checks
- Social media posts
- Criminal background checks from other states (other than child abuse and neglect registry checks)
- Vehicle insurance checks
- Meth lab checks for the home
- 911 call records for the home

Evaluating background check results

If an applicant or any other adult in the home was convicted of a crime other than those included in the federal list of automatically disqualifying felony convictions, the applicant should not be automatically rejected for licensing. Instead, evaluate the history as a whole and in context.

Automatically disqualifying history

Agencies should not have any automatic criminal disqualifiers beyond the federal ones. Agencies should consult their title IV-E attorneys and state prosecutors to identify which offenses in their state criminal code match the felony convictions described in 42 U.S.C. 671(a)(20)(A).

For an overview of how states vary, see: Criminal Background Checks, Barrier Crimes, and Foster Care Licensing: State Variations Complying with Federal Law & The Path Forward.

Timeframes for temporarily disqualifying crimes

When an automatically disqualifying crime has a timeframe attached, such as "in the last 5 years," the timeframe should begin on the date the crime was committed (not, for example, on the date of conviction or release from prison) and end on the date licensing is being considered.

The timeframe should be calculated using exact dates, not full calendar years. For example, if a felony for physical assault (a 5-year federal disqualifying crime) was committed on January 15, 2023, it would be disqualifying only through January 14, 2028 — not automatically disqualifying for all of 2028.

Evaluation criteria

When evaluating past criminal or child abuse and neglect history, the agency should consider the following:

- The role the person plans to have with children in their care
- The type of crime
- How much time has passed since the crime
- The person's age when they were convicted
- How serious the crime was
- The total number of crimes, and the person's age when they committed them
- Evidence of rehabilitation since conviction (such as completion of treatment, court-ordered classes, community service, or character references)

You can find a recommended evaluation process in the criminal history evaluation form.

Criminal convictions should be evaluated, but arrests or charges that didn't lead to a conviction should not be considered.

If there is a substantiated report of child abuse or neglect involving the applicant or any other adult in the home, assess the application case by case. This does not mean agencies should license anyone responsible for a child's death.

Agencies should not disqualify an applicant solely for being listed in the registry. These systems often have inaccurate or outdated information, and do not always comply with due process requirements for expungement. Even accurate registry listings can be misleading. For example, survivors of domestic violence are sometimes listed for "failure to protect" their children from the person abusing them, while the abuser never appears on a registry or criminal check.

Evaluation should always include a discussion with the applicant and any other adults in the home to determine whether the history affects the safety of any child in the home.

The purpose of this evaluation is to determine whether the adult poses a risk to the children in their care today. Without specific evidence that a prior finding of abuse or neglect indicates a current safety risk, the results of an abuse and neglect background check should not prevent licensing.

Expunged crimes

An expungement order directs the court to treat the criminal conviction as if it had never occurred, essentially removing it from a defendant's criminal record as well as, ideally, the public record.[1]

In theory, expunged crimes are removed from a person's record. However, court technology and recordkeeping mean that many are not removed completely.

Agencies should not include an expunged crime in their evaluations.

To help applicants apply for expungement, see Clear My Record.

Who makes the decision

The person making the licensing decision needs access to the applicant's criminal history and, ideally, has met the applicant. Agencies should follow the example of Oklahoma, where every licensing worker gets fingerprinted to become authorized to review background check results.

1 What is Expungement?

Beyond that, determine what licensing process will work best for your jurisdiction. Some agencies, like Utah, have a decision committee that meets daily, so decisions are fast and don't depend on one person.

Some agencies reported having only one employee with the authority to make licensing decisions regarding criminal history, which causes delays when that person is out. So that decisions are timely and fair, agencies should empower multiple employees to make these decisions. Staffing policies should ensure that at least one employee is available at all times to make these decisions.

California's Background Assessment Guide may be a good resource for evaluation procedures.

Timeframes for evaluating results

Because fingerprint results are one of the biggest barriers to timely licensing, agencies should evaluate results as quickly as possible without compromising safety. We recommend that agencies set an internal goal for how quickly they evaluate fingerprint results. Louisiana[1] worked with the U.S. Department of Justice to align its requirements so it can collect, receive, and evaluate fingerprint results in one day; Utah shared that its daily evaluation committee is able to provide same-day results in most cases.

Ongoing background checks

Many agencies use the FBI's Rap Back service, which provides a "subscription" to an individual's criminal activity. In these agencies, once a foster caregiver or other adult living in the home submits fingerprints, the agency will receive notification if that individual engages in any criminal activity in which fingerprints are taken.

We recommend the Rap Back service, with the caveat that Rap Back is only effective if:

Someone is actually reading the responses, empowered to act on the information, and resourced to act quickly. Information that a current caregiver committed a felony should not sit in an unread inbox.

You have the ability to unsubscribe from individual results. Some agencies report an unmanageable deluge of reports because they cannot opt out of notifications for people who are no longer caregivers or adults living in the home of caregivers.

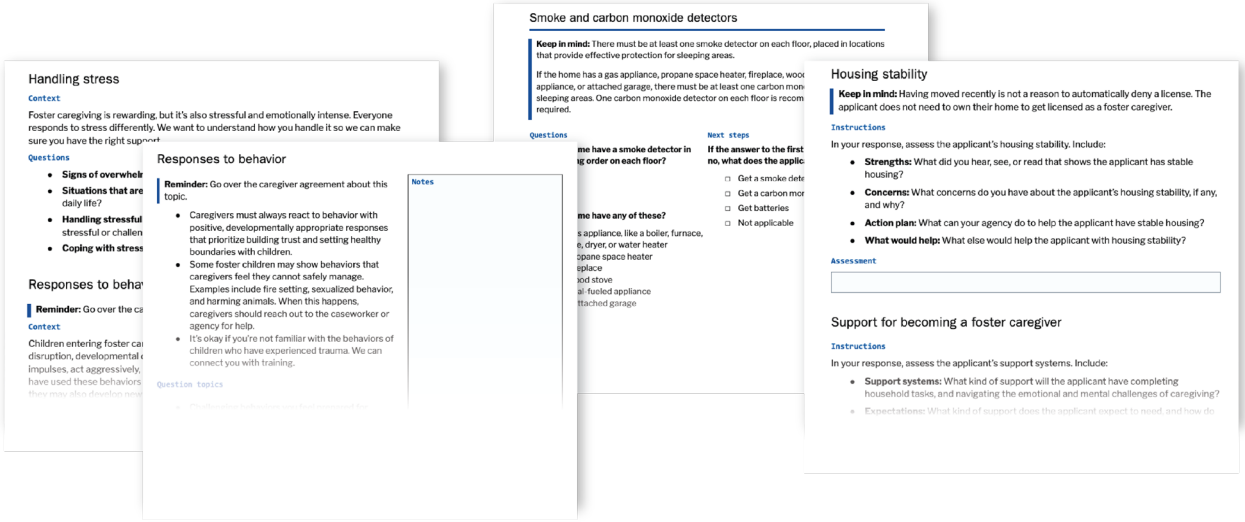
A Rap Back notification about an arrest is not, on its own, a reason to deny a license. Evaluate convictions only, using the criteria above.

1 Watch Louisiana explain its process at 33:43 of this Child Welfare Playbook Working Group meeting.

About the form templates

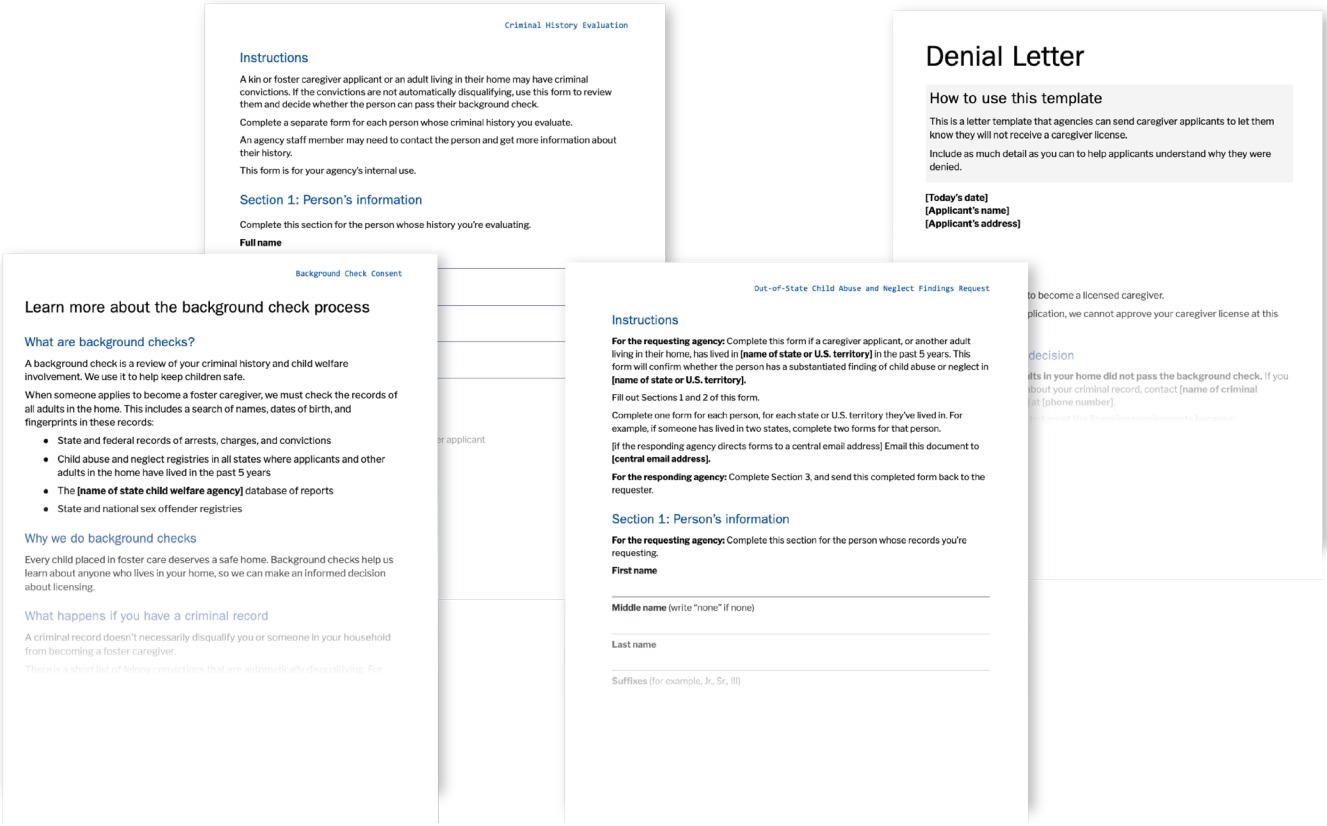
We created form templates to help agencies put these standards into practice. They're published separately from this document as editable files, so you can adapt them to your agency's systems and workflows.

We started with forms agencies already use, then tested and revised them with licensing workers, foster caregivers, former foster youth, and subject matter experts. To learn why we designed them the way we did, refer to How we designed the forms.



Home study forms

- **Full conversation guide.** Context to share with applicants and example questions for each topic in the home study visit. Use it to train new licensing workers or as a reference.
- **Short conversation guide.** The same topics in a shorter format, for experienced workers to take into the field and use for notes.
- **Home safety checklist.** The physical safety standards to check during the home visit, and what the applicant needs to do if the home doesn't meet one.
- **Home study assessment.** Prompts that help licensing workers write their assessment of an applicant after home study visits.
- **Caregiver agreements.** Responsibilities that can't be assessed before licensing, which caregivers agree to uphold once they're licensed. Talk through it with applicants during the licensing process so they understand what they're committing to.



Background check forms

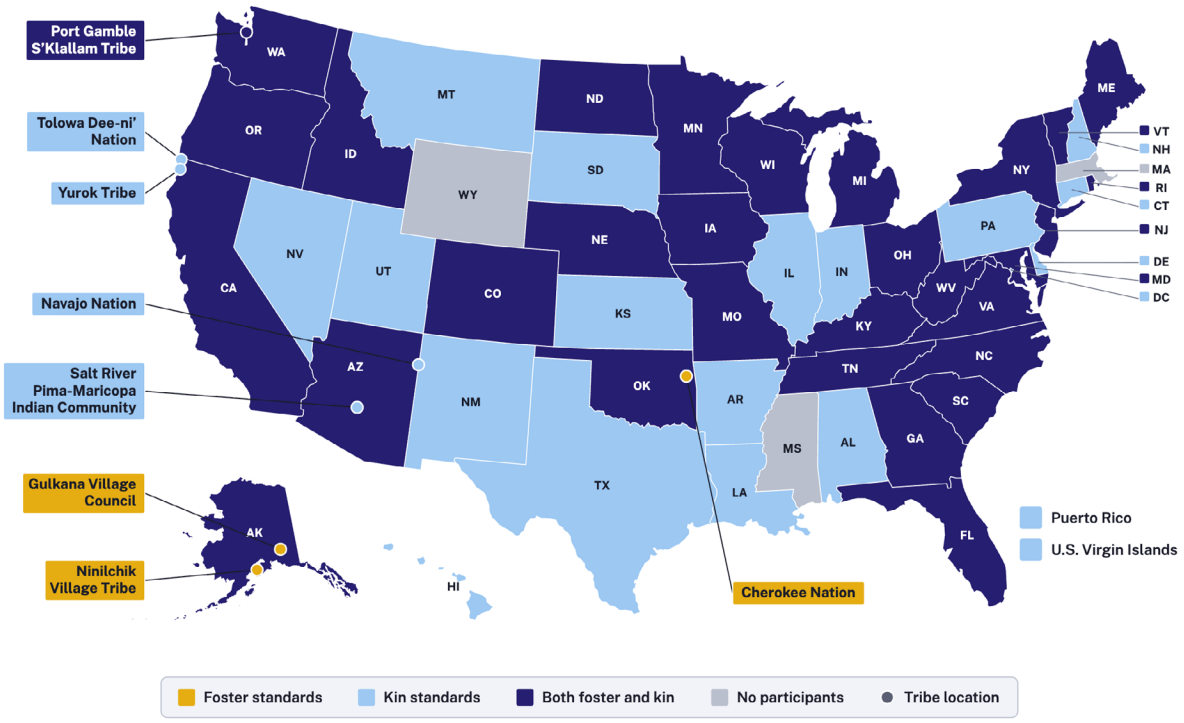
These work for both kin and foster caregiver licensing.

- **Background check consent.** A consent form and a plain-language explanation of the background check process, including the forms of ID applicants can bring to a fingerprinting appointment.
- **Out-of-state child abuse and neglect findings request.** A template for requesting registry checks from other states that asks only for the information needed to run the check.
- **Criminal history evaluation.** A structured way to evaluate criminal history that isn't automatically disqualifying, and to document the decision.
- **Denial letter.** A template letter that explains a licensing denial, how to correct an FBI record, and how to appeal.

Most templates include guidance for agency staff on how to use and adapt them.

How we developed these materials

This section describes the research behind these materials and explains the choices we made in designing the forms.



Research methodology

We worked with 191 participants across 34 jurisdictions to develop these standards and the materials that go with them. This follows and builds on the research for the kin standards, which more than 435 participants from 55 jurisdictions contributed to. Across these efforts, we learned from nearly every title IV-E jurisdiction in the U.S.

We conducted research in three rounds between May and August 2026. We also ran a public survey. Each round built on the one before it: feedback from agency managers informed what we tested with licensing workers, which informed what we tested with caregivers and former foster youth. After each round, we revised the standards and forms based on what we heard.

We conducted virtual feedback sessions across participant groups. We interviewed each agency and subject matter expert organization individually and conducted five focus groups of foster caregivers and five focus groups of former foster youth. All participants were given the opportunity to review the draft standards in full ahead of their session. In each session, we pre-selected standards for high-priority feedback and then let participants choose standards they wanted to give feedback on, covering about eight standards per session, on average.

Our participants in the feedback sessions consisted of the following groups:

- **Public, private, and Tribal agency licensing staff:** 45 state and county agency staff, 16 private child-placing agency staff, and 7 Tribal agency staff who were licensing managers, supervisors, and home study workers. Agency staff represented 21 jurisdictions, including 16 states, one county, two title IV-E Tribes, and two Tribal councils. We spoke with 30 agencies in total; nine were private child-placing agencies.
- **Foster caregivers:** 34 participants across 14 jurisdictions (13 states and one Tribe)
- **Former foster youth:** 32 participants across 15 jurisdictions (14 states and one Tribe)
- **Subject matter experts:** Eight experts in population health and epidemiology, fire safety, and social work reviewed standards specific to their areas of expertise.

We received 49 responses to the public survey from former foster youth, foster caregivers, licensing workers, child welfare professionals, and partner networks. Participants represented 22 states.

We selected agencies from jurisdictions that represented a range of geographic regions, administrative structures, political leanings, racial diversity, and population sizes across the country. We selected foster caregivers who reflected a wide range of experiences and perspectives in the fostering community, including their time fostering, permanency experiences, whether they had cared for high-needs children, and what type of agency licensed them. We also sought demographic diversity, selecting for participants from a wide range of geographic regions, urban and rural settings, gender and sexual orientation, race and ethnicity, and socioeconomic status.

We selected former foster youth in a similar fashion, seeking a wide range of experiences with foster care, including those who held dual perspectives as a child welfare professional or a current foster caregiver, types of living situations and placements while in foster care, how they exited foster care or achieved permanency, and whether they were separated from their siblings while in care. We also selected former foster youth based on their demographic characteristics: geographic region, urban or rural setting, gender and sexual orientation, race and ethnicity, and socioeconomic status.

How we designed the forms

We designed these forms and tools so that agencies can adapt them to their own purposes. In this section, we explain some of the choices we made so you can decide what to keep and what to change.

We developed these materials by auditing licensing forms from agencies across the country, then co-designing and testing new versions with licensing workers, foster caregivers, former foster youth, and subject matter experts.

Principles

Ask only for what you'll use. Explain why you're asking.

Every question should serve a clear purpose, and that purpose should be clear to the person filling it out. If a question asks for information that won't be acted on or that will be captured again in a different step, it should be removed. Whenever we ask for sensitive information, we provide an explanation. When applicants understand the purpose of a question, they're more likely to answer honestly and less likely to drop out of the licensing process.

Don't ask applicants to self-report information that you're going to look up.

During our audit, we saw several forms that asked applicants to provide their criminal history, then compared it against background check results. Doing this sets applicants up to fail. People forget dates, they misremember charges, or they just don't understand legal terminology. These discrepancies create unnecessary problems in the licensing process.

Discuss sensitive topics when possible, rather than asking about them in writing.

Struggles with mental health, substance use, and adverse childhood experiences are stigmatized. When a paper form asks about them without context or a chance to discuss them, applicants may worry about how their answers will be used. These topics should be covered during the in-person assessment so that a licensing worker can explain why the information matters, ask follow-up questions, and address any concerns.

Recognize that applicants are being vulnerable and earn their trust.

The licensing process asks applicants to open their homes and reveal their histories to strangers. The forms they're asked to complete should respect that. We used plain language throughout and we explain what happens next after each step.

Make it so that one person can finish it.

Several agencies we spoke with require each household member to fill out a separate, extensive questionnaire. This delays the process. If three adults live in a household, that's three forms that all need to be completed before anything moves forward. We designed the forms so the applicant provides what the agency needs about their household. Household members are assessed during the in-person home study instead.

The conversation guide

Very few jurisdictions currently have a conversation guide that licensing workers can use during home study visits. In our conversations with licensing workers, we found that every worker has their own process for navigating conversations and knowing what questions to ask, developed over the course of their career. Licensing workers told us that a conversation guide would be a helpful tool.

We created two versions of the conversation guide: one version for training that includes complete examples of questions to ask, and a short version for experienced licensing workers that lists subjects to cover.

The conversation guide contains example questions or subjects for every topic that licensing workers should talk about with caregiver applicants. It's not meant to be a word-for-word script, but a helpful starting point for approaching topics. We heard that some topics — for example, trauma and discipline — can be especially hard to navigate, so the examples provide guidance for having sensitive and trauma-informed conversations. We learned that home study visits are also opportunities for licensing workers to share knowledge around topics that caregivers may be unfamiliar with, so we wrote the conversation guide with this in mind.

The conversation guide aims to bring more consistency to the home study process. If two jurisdictions have the same licensing standards, a home study visit should cover similar ground no matter where it happens, even though every worker brings their own style and experience to the conversation itself.

The assessment form

The assessment form is the core instrument. It's the tool a licensing worker uses during and after the home study to assess whether an applicant can safely care for children.

Why it includes assessment prompts

Agency managers often make the final licensing decision, but they generally haven't met the applicant, and they rely on what the licensing worker wrote. Many existing forms give workers a broad topic heading and an open text field but don't provide direction on what to record or how to think about it. This leads to inconsistent write-ups. Some workers write thorough, nuanced narratives while others only write a few sentences.

The assessment prompts tell licensing workers not just what facts to record, but what to consider and how to synthesize what they heard. For example, the prompts for responses to behavior ask the worker to consider whether the applicant focuses on the behavior itself and its consequences, or on understanding the reasons for the behavior and building trust.

The guidance is provided for the worker, not the applicant. It supports the judgment of licensing workers by helping them think through gray areas rather than relying on gut instinct or defaulting to a checklist.

If your agency's assessment form includes an evaluation section along with other information a licensing supervisor needs to review (for example, background check results and references), consider adopting the prompts in this template for that section.

Why it's structured around caregiving capacity, not compliance

The assessment form is organized around what a caregiver needs to be able to do: understand trauma, build trust with a child, manage their own history, support a child's identity and connections. It's not a checklist of requirements to meet.

The form looks for the strengths an applicant might bring to different parts of caregiving. It also emphasizes an applicant's willingness to learn and adapt, because that's key to becoming a successful foster caregiver.

The form asks workers to assess and document things like:

- Whether the applicant has realistic and flexible expectations of foster care and foster children
- Whether the applicant shows self-awareness about their own limits, history, and stress responses

- Whether the applicant has a support system, or is willing to build one
- Whether the applicant can describe responding to challenging behavior with curiosity rather than control
- Whether the applicant is willing to maintain a child's connections to their family, community, and identity

There is no "perfect" applicant. Readiness to become a foster caregiver is not black and white, and people's understanding continues to develop throughout the licensing process itself. The form helps workers develop a clear picture of where an applicant is, what additional support they might need, and whether the evidence supports licensing them.

There is no "perfect" applicant. Readiness to become a foster caregiver is not black and white, and people's understanding continues to develop throughout the licensing process itself. The form helps workers make an informed judgment about where an applicant is, what support they might need, and whether the evidence supports licensing, not produce a pass/fail score.

Why the physical home safety section is a checklist, not a narrative

The physical home safety questions are structured differently from the rest of the assessment. They are a checklist — is there a smoke detector, is medication stored safely, are firearms locked? — because these questions have clear, observable answers. A checklist is faster for the worker, more consistent across assessments, and easier for a supervisor to review.

Where a safety item is missing, the form prompts the agency to identify steps the applicant needs to take, not to disqualify the applicant. If an applicant doesn't have a smoke detector, the assessment tells them they must install one. The home safety section helps agencies identify clear solutions, so the applicant knows what they have to do to meet requirements.

What we left out of the assessment form

Policy language. Some existing assessment forms include the full text of the licensing standard alongside each question. The text is hard to read, and makes the form much longer. The questions in the assessment form reflect the policies, but the full policy language belongs in a separate document.

Questions for minor children and other household members. Some agencies include these on their assessment forms. We designed the assessment form for interviews with applicants. We recognize that interviewing other household members is a standard part of the home study process. Consider adapting sections of the conversation guide (identified in the form instructions) for talking to other household members. Otherwise, follow your agency's guidance for interviewing household members.

A separate section for adoption. Some agencies use a single form for foster care and adoption home studies. These materials are for foster caregiver licensing. Agencies that want to use the assessment form for adoption may need to add an addendum.

The background check forms

The background check forms include templates for a consent form, a criminal history evaluation, an out-of-state child abuse and neglect findings request form, and a denial letter. They work for both foster and kin caregiver licensing since the background check process is largely the same regardless of caregiver type.

Why the consent form explains the process in plain language

Many applicants — especially kin caregivers — are afraid of the background check process. That fear leads people to drop out or decline to engage with the agency altogether. Our research and the kin standards research both found that how the process is presented and explained makes a real difference in whether caregivers participate.

The consent form explains what checks will be conducted, why, what happens if something comes up in the results, and what the applicant's rights are. It states that a criminal record does not necessarily automatically disqualify someone.

Why we don't ask applicants to list their own criminal history

This is common in existing forms, and we deliberately removed it. As described above, self-reported criminal history is less reliable than background check results, and the discrepancies cause real problems. Agencies told us about delays, unnecessary additional review, and in at least one case, a discrepancy being added to a caregiver's record without verification.

The criminal history evaluation form gives the worker a structured way to review background check results in context — considering the type of crime, how long ago it happened, evidence of rehabilitation, and the individual's planned role with the child. That's where the judgment call happens, not in a comparison between two documents.

Why the evaluation form exists

Federal law establishes a short list of felony convictions that automatically disqualify someone from becoming a licensed caregiver. Everything else requires a judgment call.

The evaluation form reflects the Administration for Children and Families' guidance (IM-26-02) about what factors state agencies should consider to decide if a crime is disqualifying. It gives the evaluation process a structure, and creates a written record of an agency's reasoning. This matters for consistency (different workers evaluating similar histories should reach similar conclusions) and for accountability (if an applicant appeals, there's a documented rationale).

The caregiver agreements form

The caregiver agreements form documents commitments that caregivers make about how they will behave after being licensed — things like not using physical or degrading punishment, not smoking in the home or vehicle, and ensuring safe transportation. These are post-licensing conduct requirements: they can't be verified during the home study, so they're documented as agreements the caregiver signs.

The form is designed to be reviewed with the applicant during the licensing process, not just handed over for a signature. The guidance for agencies recommends talking through each agreement with the applicant, so they understand what they're committing to and why.

Why we didn't create a template for a general application form

This work does not include a template for a general application form. This is the first thing a prospective caregiver fills out to start the licensing process. We focused on the assessment form, background check forms, and caregiver agreements forms, because these support the processes with the biggest impact on whether an applicant gets licensed.

Our review of agencies' existing application forms led to these best practices for designing application forms:

Keep the application short

Many existing application forms are long, with intrusive questions that duplicate what the home study covers. Our audit found applications that asked about mental health history, substance use, detailed financial information, and criminal history — all without context, all on paper, and all before the applicant had a single conversation with a licensing worker.

Long applications discourage people from completing them. If the goal is more safe and capable licensed caregivers, the application should make it easy for people to enter the process, not screen them out before it begins. The application collects basic information (name, contact, household members, references, licensing history), confirms the applicant understands what foster care involves, and gets the background check process started.

What to leave off the application

Self-reported criminal history. The agency finds this through background checks. Asking applicants to self-report it is redundant and creates more problems than it solves, as described above.

Mental health and substance use. These topics are better handled in person so that the licensing worker can provide some context and ask follow-up questions. When this sort of question is put on a form that the applicant fills out alone, it risks scaring people away or getting partial answers.

Detailed questions about the physical home. Most questions about the home should wait for the in-person visit. Asking them on the application only makes sense for things that can't be changed and that would affect whether someone can be licensed at all — like the number of bedrooms, if your jurisdiction has a bedroom requirement. Everything else is assessed and addressed during the home study.

Separate forms for household members. Some states require each household member to complete their own form, asking about mental health history, substance use, and other sensitive information. This slows the process and puts a burden on people who didn't choose to apply as foster caregivers. The application form should ask the applicant to provide their household members' basic information. The home study includes interviews with household members; that's where agencies should gather more detailed information, like their health history.

About the authoring organizations

American Bar Association Center on Children and the Law promotes access to justice for children, parents, and families encountering the child welfare system through improved legal and judicial practice. The views expressed herein have not been approved by the House of Delegates or the Board of Governors of the American Bar Association and, accordingly, should not be construed as representing the policy of the American Bar Association.

Bloom Works is a woman-owned public benefit company with roots in government. Bloom uses research, service design, content strategy, and plain language to help public-sector partners build capacity and create accessible, equitable digital services. Bloom led the research, design, and development of these standards and their accompanying materials.

Child Welfare Playbook is a coalition of child welfare professionals from every state, many Tribes, and most territories that meets regularly to surface and scale promising practices to end adverse placements. Its work focuses on increasing and supporting kin placements, reducing licensing barriers, data-driven foster caregiver recruitment, and recruiting and retaining homes that best meet children's needs.

Generations United is a national nonprofit focused on intergenerational policies and programs. Its National Center on Grandfamilies has been a leading voice for kinship families for decades. Its Grandfamilies & Kinship Support Network is the first national technical assistance center for those who serve kinship families.

Think of Us is a research and design lab working to transform child welfare. Led and guided by people who have been directly impacted by the system, Think of Us works with government agencies, lawmakers, providers, advocates, and foundations to drive solutions at the federal, state, and local levels.

Contributors

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Use of AI

Contributors used AI tools for reference, brainstorming, and editing. People wrote, reviewed, and approved all content in this document. No AI tools were used to conduct or analyze the research.